

Franciscus Dylan Rosario (IN PRO PER)
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IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

**APPELLANT'S [PROPOSED] ORDER GRANTING
MOTION TO
DISREGARD MATTERS OUTSIDE THE RECORD
IN RESPONDENT'S BRIEF, OR IN THE
ALTERNATIVE
TO STRIKE THOSE PORTIONS**

Proposed Order; Proof of Service

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PROPOSED ORDER

COURT OF APPEAL OF THE STATE OF CALIFORNIA

FIRST APPELLATE DISTRICT, DIVISION THREE

Franciscus Dylan Rosario, Plaintiff and Appellant,

v.

Subhi Abdelhalim, individually, and dba Sonoma Liquor, Defendant and Respondent.

Court of Appeal No. A173827

(San Francisco County Superior Court Case No. CGC-21-594102)

ORDER GRANTING APPELLANT'S MOTION TO DISREGARD MATTERS OUTSIDE THE RECORD IN RESPONDENT'S BRIEF, OR IN THE ALTERNATIVE TO STRIKE THOSE PORTIONS

THE COURT:

Appellant Franciscus Dylan Rosario's Motion to Disregard Matters Outside the Record in Respondent's Brief, or in the Alternative to Strike Those Portions, having been filed and considered by this

Court, and good cause appearing therefor under California Rules of Court, rules 8.54 and 8.204(e)(2)(C):

IT IS HEREBY ORDERED that Appellant's Motion is GRANTED. The following portions of Respondent's Brief, filed on August 3, 2026, shall be DISREGARDED in deciding this appeal pursuant to California Rules of Court, rule 8.204(e)(2)(C):

1. Page 8, lines 8 through 16;
2. Page 9, lines 5 through 12;
3. Page 10, lines 15 through 21;
4. Page 10, lines 29 through 31;
5. Page 11, lines 6 through 11;
6. Page 13, lines 25 through 28; and
7. Page 14, lines 16 through 20.

In the alternative, if the Court determines that disregard under rule 8.204(e)(2)(C) is insufficient, IT IS FURTHER ORDERED that the foregoing passages are STRICKEN under this Court's inherent power. (Advisory Com. com., Cal. Rules of Court, rule 8.204; see *Berger v. Godden* (1985) 163 Cal.App.3d 1113, 1116.) This order does not strike the Respondent's Brief in its entirety.

IT IS SO ORDERED.

Dated: _____

Presiding Justice, Court of Appeal

First Appellate District, Division Three

PROOF OF SERVICE

I, Franciscus Dylan Rosario, declare:

I am the Plaintiff and Appellant in this action, appearing in propria persona (self-represented). I am over the age of 18 years. My residence address is:

7624 Melody

ROHNERT PARK, CA 94928

On August 20, 2026, I served the foregoing document described as:

**APPELLANT'S [PROPOSED] ORDER GRANTING
MOTION TO DISREGARD MATTERS OUTSIDE THE
RECORD IN RESPONDENT'S BRIEF, OR IN THE
ALTERNATIVE TO STRIKE THOSE PORTIONS**

on the interested parties in this action as follows:

BY ELECTRONIC SERVICE (TRUEFILING):

Pursuant to California Rules of Court, rules 8.71 and 8.78, I caused the document to be electronically served through TrueFiling to the following registered counsel:

Rebekah A. Morrissey, Esq.

KOYAMA & COSTELLO

P.O. Box 24508

Oakland, CA 94623-1508

Attorneys for Defendant and Respondent Subhi Abdelhalim, individually, and dba Sonoma Liquor

**BY FIRST CLASS MAIL (SUPERIOR COURT CLERK,
CRC 8.212(c)(1)):**

I placed a true copy thereof enclosed in a sealed envelope with postage thereon fully prepaid in the United States mail at Rohnert Park, California, addressed as follows:

Clerk of the Court

San Francisco County Superior Court

400 McAllister Street

San Francisco, CA 94102

(for delivery to Hon. Garrett L. Wong)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 20, 2026, at Rohnert Park, California.



/s/

Franciscus Dylan Rosario
Declarant / Appellant in Pro Per
7624 Melody
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